



Vishal Kumar <vishal152715@gmail.com>

VTP Sierra Phase II – Draft Agreement – VTP Sierra Ph2-T3-2502

6 messages

Balaji Ekande <crm47@vtprealty.in>
To: "vishal152715@gmail.com" <vishal152715@gmail.com>
Cc: "crm59@vtprealty.in" <crm59@vtprealty.in>

Thu, Mar 21, 2024 at 9:47 AM

Dear VISHAL KUMAR,

Please refer to the attached agreement draft for your reference.

Kindly request you to check the personal details and share us the confirmation on the same at earliest.

Should you have any concerns / queries please get in touch with us.

Thanks & Regards,
CRM Team,
VTP Sierra Phase II

 **Agreement.pdf**
277K

Vishal Kumar <vishal152715@gmail.com>
To: Balaji Ekande <crm47@vtprealty.in>
Cc: "crm59@vtprealty.in" <crm59@vtprealty.in>, charu piriya <charuu.piriya@gmail.com>

Thu, Mar 21, 2024 at 6:36 PM

Hi Balaji,

Thank you for sharing the agreement draft. I am writing to discuss certain clauses and terms within the Sale Agreement draft that require further clarification and potentially negotiation.

Clause XVI: The agreement mentions that the buyer has inspected all documents relating to the project land and architectural plans but we have not been provided those documents to us yet. Can you please share those to us over email if possible?

Clause XIX: The clause grants the promoter the right to amend the building plan without the our consent, which could lead to changes that may not be favorable to us. I suggest modifying this to a clause that requires the you to obtain our consent before making significant changes to the building plan.

Clause 4.6: The clause restricts the buyer from making any claims or objections regarding the development of common areas or amenities. However, it is essential for us to have the ability to raise concerns about developments that may directly affect our property.

Clause 12.1: The clause mentions that the possession will be given on 30th June 2025, however at the time of booking, the agreed-upon date was 31st March 2025. Can you please rectify this?

Clause 12.1: The clause does not mentions the Section 18(1) of the RERA where if I choose not to cancel and take refund in case of delay, we can claim monthly interest at twice the bank rate on the invested amount until possession is handed over.

Clause 18.3: The clause seems to suggest that parking space entitlement could be compromised in case of disputes over parking allocations among flat/unit allottees. This raises concerns for me as it deviates from our initial understanding of getting a covered car parking space.

Clause 19.21: The clause mentions the details of certain common facilities and amenities in case the development is extended. Can you please clarify if the date is same as 31/12/2025?

Furthermore,

Warranties: The agreement does not mention the warranty duration provided by the seller, whether, it is 5 months or 5 years.

Please let me know your thoughts on this.

Best regards,
Vishal Kumar
+919589307943

[Quoted text hidden]

Karishma Satarkar <crm59@vtprealty.in>
To: Vishal Kumar <vishal152715@gmail.com>
Cc: charu piriya <charuu.piriya@gmail.com>

Tue, Mar 26, 2024 at 7:23 PM

Dear Sir,

As discussed on call, replying your queries in Bold,

Clause XVI: The agreement mentions that the buyer has inspected all documents relating to the project land and architectural plans but we have not been provided those documents to us yet. Can you please share those to us over email if possible?

Ans- All the details are available on RERA Website , you can inspect the same online.

Clause XIX: The clause grants the promoter the right to amend the building plan without the our consent, which could lead to changes that may not be favorable to us. I suggest modifying this to a clause that requires the you to obtain our consent before making significant changes to the building plan.

Ans- Please refer Clause No 6, it will clarify & give you details.

Clause 4.6: The clause restricts the buyer from making any claims or objections regarding the development of common areas or amenities. However, it is essential for us to have the ability to raise concerns about developments that may directly affect our property.

Ans- Please read the trail of Clause from 4.1 it is clearly explained about the development of sanction layout which is not limited to project VTP SIERRA .In clause No 4.6 it is clearly mentioned that the allottee/s shall have no claim on any other part of the said tower /cluster except the said flat , nor can make any claim or raise any objection to the development of the said project land or the said land or the layout land or to any decision that the promoter may take in that regard.

Clause 12.1: The clause mentions that the possession will be given on 30th June 2025, however at the time of booking, the agreed-upon date was 31st March 2025. Can you please rectify this?

Ans-As discussed and explained to you about the possession date which will be incorporated in agreement, we will be putting every efforts to complete the unit before the said committed date.

Clause 12.1: The clause does not mentions the Section 18(1) of the RERA where if I choose not to cancel and take refund in case of delay, we can claim monthly interest at twice the bank rate on the invested amount until possession is handed over.

Ans- Please refer clause no.10 page 19, interest will be paid to buyers as per the interest rate specified in the rule if applicable.

Clause 18.3: The clause seems to suggest that parking space entitlement could be compromised in case of disputes over parking allocations among flat/unit allottees. This raises concerns for me as it deviates from our initial understanding of getting a covered car parking space.

Ans - Please read the clause trail from 18.1 all those clauses are to explain EXCLUSIVE FACILITY OF OPEN SPACES/Common Areas. for allotted parking specification please refer clause no.7.1 and third schedule on page no.50.

Clause 19.21: The clause mentions the details of certain common facilities and amenities in case the development is extended. Can you please clarify if the date is same as 31/12/2025?

Ans- Amenities will be completed as per the clause no.13 i.e. 31-12-2025.

Furthermore,

Warranties: The agreement does not mention the warranty duration provided by the seller, whether, it is 5 months or 5 years.

Please let me know your thoughts on this.

Ans - Please refer to clause no 12.9.

Thanks & Regards,
Karishma Satarkar
CRM Team
8956940718



From: Vishal Kumar <vishal152715@gmail.com>
Sent: Thursday, March 21, 2024 6:36 PM
To: Balaji Ekande <crm47@vtprealty.in>
Cc: Karishma Satarkar <crm59@vtprealty.in>; charu piriya <charuu.piriya@gmail.com>
Subject: Re: VTP Sierra Phase II – Draft Agreement – VTP Sierra Ph2-T3-2502

SECURITY WARNING! This is an external email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

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Vishal Kumar <vishal152715@gmail.com>
To: Karishma Satarkar <crm59@vtprealty.in>
Cc: charu piriya <charuu.piriya@gmail.com>

Tue, Mar 26, 2024 at 7:49 PM

Hi Karishma,

Thank you for clarifying the details. Please consider this email as my confirmation.

Let me know if you need any other details from my end for the registration.

Best Regards,
Vishal Kumar
Contact - 9589307943

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Karishma Satarkar <crm59@vtprealty.in>
To: Vishal Kumar <vishal152715@gmail.com>
Cc: charu piriya <charuu.piriya@gmail.com>

Thu, Mar 28, 2024 at 6:38 PM

Dear Sir/Madam,

We hope this email finds you well.

We are delighted to inform you that we have successfully secured the registration slot for your apartment on 29th March 2024 at 02:00 pm. Congratulations on reaching this milestone in your journey towards owning your new home!

To ensure a smooth registration process, we kindly request that you bring the following documents with you:

PAN card

Aadhaar card

Two recent passport-size photographs of the applicant

Two recent passport-size photographs of the co-applicant (if applicable)

Power of Attorney (POA), if applicable

These documents are essential for completing the registration formalities efficiently.

For your convenience, below are the contact details and address where the registration will take place:

Name: Adv. Shivraj Bhosale

Address: HAVELI NO 4, Rajmata Jijau Sankul, Near Bavdhan Police Chowki, NDA Pashan Rd, Bavdhan

Contact Number: 9767414046

Kindly Call a advocate when u reach at the location

Please feel free to reach out to me if you have any questions or require further assistance. We are here to help you every step of the way.

Thanks & Regards,
Karishma Satarkar
CRM Team
8956940718



From: Vishal Kumar <vishal152715@gmail.com>

Sent: Tuesday, March 26, 2024 7:49 PM

To: Karishma Satarkar <crm59@vtprealty.in>

Cc: charu piriya <charuu.piriya@gmail.com>

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Vishal Kumar <vishal152715@gmail.com>

To: Shrigns284@gmail.com

Tue, Apr 2, 2024 at 4:38 PM

Best Regards,

Vishal Kumar

Contact - 9589307943

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Agreement.pdf

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